



Lesson 10

1. Role and functions of Salespersons and their requisite knowledge and skills
2. Government legislation and regulations pertaining to estate agency work

Source: Statutes

<https://sso.agc.gov.sg/Index>

Source: The Estate Agents Act

<https://www cea.gov.sg/docs/default-source/legislation-guideliness/eaacap95a.pdf>

SEAA has made reasonable efforts to ensure all information provided in the notes is accurate at the time of print. Do be informed this standard set of course material you have received is provided for all students attending our intakes.

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Summary of Statutes learnt in Previous Lessons (Paper 1 Topics)



Statutes		Involved Department
1	State Land Act	Ministry of Law Singapore Land Authority
2	Land Title Act	Ministry of Law Singapore Land Authority
3	Land Title Strata Act (Strata Development)	Ministry of Law Urban Redevelopment Authority
4	State Land Act (99 or 30 year lease)	Ministry of Law Singapore Land Authority
5	Intestate Succession Act	Ministry of Law
6	Administration of Muslim Law Act	Ministry of Law Judiciary - Syariah Court Singapore
7	Bankruptcy Act (Paper 1 & Paper 2 Topics) replaced by Insolvency, Restructuring and Dissolution Act	Ministry of Law Public Trustee Office
8	Trustee Act (Trustee & Beneficiary)	Judiciary
9	Limitation Act (Contract, Negligence etc)	Judiciary
10	Planning Act (Master Plan, Short Term Lease)	Ministry of National Development Urban Redevelopment Authority

Knowledge & Compliance of Relevant Laws (Paper 2 Topics)

Statutes		Involved Department
1	Estate Agent Act (Covered in last lesson)	Ministry of National Development Council of Estate Agencies
2	Land Title Strata Act (MCST, Collective Sales Process)	Ministry of Law, Urban Redevelopment Authority
3	Building Maintenance & Strata Management Act	Ministry of National Development Building Construction Authority
4	Residential Property Act (Paper 1 & Paper 2 Topics)	Ministry of Law Singapore Land Authority
5	Terrorism (Suppression of Financing) Act Corruption, Drug trafficking & other serious crimes (confiscation of benefits) Act	Ministry of Home Affairs Council for Estate Agencies
6	Conveyancing & Law Property Act (Paper 1 & Paper 2 Topics)	Ministry of Law
7	Planning Act - Planning Permission	Ministry of National Development Urban Redevelopment Authority
8	Immigration Act	Ministry of Manpower Immigration & Checkpoints Authority
9	Land Acquisition Act	Ministry of Law Singapore Land Authority
10	Oaths and Declarations Act	Various government department



Require Knowledge of Legislation – Cover in Future Lessons

	Statutes	Involved Department
10	Land Betterment Charges Act 2021	Singapore Land Authority
11	Personal Data Protection Act	Personal Data Protection Commission
12	Consumer Protection (Fair Trading) Act	Ministry of Trade and Industry, Consumers Association of Singapore
13	Small Claim Tribunal Act	State Court
14	Housing Developers (Control & Licensing Act) Sale of Commercial Properties Act	Urban Redevelopment Authority
15	Housing and Development Act Executive Condominium Housing Scheme Act	Housing and Development Board
16	Property Tax Act Stamp Duties Act Income Tax Act	Inland Revenue Authority Of Singapore
17	Central Provident Fund Act	Ministry of Manpower Central Provident Fund Board

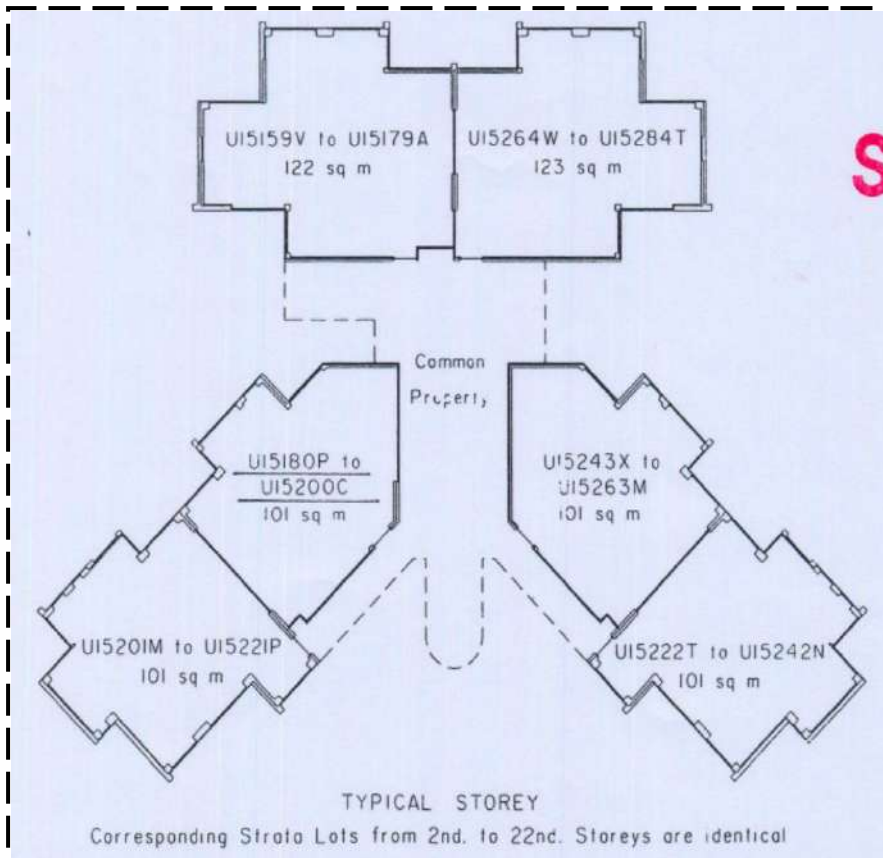
Land Titles Strata Act

1. Subdivision of Land (**Covered in Lesson 1 & 2**) and Creation of Subsidiary Strata Land Register
 - Minister → Chief Planner → strata subdivision of the building or landed housing development
 - Formation of Management Corporation
 - Management Corporation (“MCST Plan No. ____”)
→ made up of all subsidiary proprietors (owners) of the lots constituted
2. Rights and Obligation of Subsidiary Proprietors
 - Implied Easement and Statutory Easement (Covered in Lesson 3 and 4)
 - Common Property
 - Share Values
 - Restriction of Subsidiary Proprietor’s Rights
3. Variation or Termination of Strata Subdivision
4. Rights and Process to opt for *Enbloc Sales* – Collective Sales Agreement for Strata Title Development
 - Covers in Lesson 14
5. Issue of Subsidiary Certificate of Titles (HDB flats), JTC Property (Lease Document)and Subsidiary Strata Certificate of Titles.

Strata Development - Strata Certified Plan

- ❖ 22-Storey Tower
- ❖ 6 Units Per Floor

Who is holding this document ?



WATER TANK ROOM AND MOTOR ROOM			WATER TANK ROOM AND MOTOR ROOM			
UI5179A 22-38	UI5200C 22-48	UI5221P 22-46	UI5242N 22-44	UI5263M 22-42	UI5284T 22-40	2.80
UI5178T 21-38	UI5199X 21-48	UI5220V 21-46	UI5241K 21-44	UI5262C 21-42	UI5283P 21-40	2.80
UI5177P 20-38	UI5198N 20-48	UI5219T 20-46	UI5240A 20-44	UI5261L 20-42	UI5282V 20-40	2.80
UI5176V 19-38	UI5197K 19-48	UI5218P 19-46	UI5239N 19-44	UI5260X 19-42	UI5281W 19-40	2.80
UI5175W 18-38	UI5196A 18-48	UI5217V 18-46	UI5238K 18-44	UI5259C 18-42	UI5280M 18-40	2.80
UI5174M 17-38	UI5195T 17-48	UI5216W 17-46	UI5237A 17-44	UI5258L 17-42	UI5279V 17-40	2.80
UI5173C 16-38	UI5194P 16-48	UI5215M 16-46	UI5236T 16-44	UI5257X 16-42	UI5278W 16-40	2.80
UI5172L 15-38	UI5193V 15-48	UI5214C 15-46	UI5235P 15-44	UI5256N 15-42	UI5277M 15-40	2.80
UI5171X 14-38	UI5192W 14-48	UI5213L 14-46	UI5234V 14-44	UI5255K 14-42	UI5276C 14-40	2.80
UI5170N 13-38	UI5191M 13-48	UI5212X 13-46	UI5233W 13-44	UI5254A 13-42	UI5275L 13-40	2.80
UI5169L 12-38	UI5190C 12-48	UI5211N 12-46	UI5232M 12-44	UI5253T 12-42	UI5274X 12-40	2.80
UI5168X 11-38	UI5189W 11-48	UI5210K 11-46	UI5231C 11-44	UI5252P 11-42	UI5273N 11-40	2.80
UI5167N 10-38	UI5188M 10-48	UI5209X 10-46	UI5230L 10-44	UI5251V 10-42	UI5272K 10-40	2.80
UI5166K 09-38	UI5187C 09-48	UI5208N 09-46	UI5229M 09-44	UI5250W 09-42	UI5271A 09-40	2.80
UI5165A 08-38	UI5186L 08-48	UI5207K 08-46	UI5228C 08-44	UI5249P 08-42	UI5270T 08-40	2.80
UI5164T 07-38	UI5185X 07-48	UI5206A 07-46	UI5227L 07-44	UI5248V 07-42	UI5269K 07-40	2.80
UI5163P 06-38	UI5184N 06-48	UI5205T 06-46	UI5226X 06-44	UI5247W 06-42	UI5268A 06-40	2.80
UI5162V 05-38	UI5183K 05-48	UI5204P 05-46	UI5225N 05-44	UI5246M 05-42	UI5267T 05-40	2.80
UI5161W 04-38	UI5182A 04-48	UI5203V 04-46	UI5224K 04-44	UI5245C 04-42	UI5266P 04-40	2.80
UI5160M 03-38	UI5181T 03-48	UI5202W 03-46	UI5223A 03-44	UI5244L 03-42	UI5265V 03-40	2.80
UI5159V 02-38	UI5180P 02-48	UI5201M 02-46	UI5222T 02-44	UI5243X 02-42	UI5264W 02-40	2.80
COMMON	PROPERTY		COMMON	PROPERTY		

Building Maintenance & Strata Management Act

1. Under **Land Title Strata Act**, A management corporation (MC) is automatically formed.
“The Management Corporation - Strata Title Plan No. __ ” (MCST Plan No. __)
2. Duty of MCST:
 - to control, manage, administer and maintain the **common property** for all subsidiary proprietors.



Building Maintenance & Strata Management Act

3. **Developer** plays the role of the MC for new strata development in first **12 months**.
4. Developer is required to:
 - keep proper books of accounts
 - appoint an auditor to audit his accounts annually and
 - file a certified true copy of audited accounts to the Commissioner Of Building.
5. Every MC must keep **accounting records** and **financial statements** for at least **5 years**.

S48 - Building Maintenance and Strata Management Act

6. All SPs are required to contribute **management fund** and **sinking fund**
7. When contribution becomes **due** for **30 days** → **Written Demand for interests**.
 - SP fail to pay within **14 days** after the written demand has been served → Fine
 - MC can recover any unpaid contribution through **Small Claims Tribunal** or **State Courts**
 - MC can also **register a charge** on the property for default
8. Developer pays **maintenance charges** for all **unsold units** and sold units that has not handed over to the purchasers after a 3-month grace period from TOP

Owners evicted from Arc@Tampines unit after MCST's forced sale to recover unpaid maintenance fees



The couple who owned the flat had repeatedly failed to pay bills, which amounted to around \$36,000 at the time of the sale. PHOTO: SCREENGRAB FROM GOOGLE MAPS



Joyce Lim
Senior Business Correspondent

PUBLISHED SEP 15, 2022, 8:25 PM SGT



SINGAPORE - A couple who owned a three-bedroom apartment at Arc@Tampines were evicted after the executive condominium's management corporation strata

Building Maintenance & Strata Management Act

9. MC is to prepare and keep a strata roll.
 - A **strata roll** is a register of all unit owners
10. MC administers day-to-day matters
11. MC may employ services of a **managing agent** (MA) to run daily matters.
 - MA can be appointed for a term of up to **3 years**.

Roles of Management Corporation Council

1. The MC council is representative body of members elected among SPs at each annual general meeting (AGM)
2. Council can have up to **14 members**
3. Eligibility for election to the council
 - **SPs** have to be at least **21 years old** **or**
 - Nominee who is an immediate family member of an SP that nominates him or her; **or**
 - Nominee of a company (SP)
4. Every MC is required to adopt a set of by-laws (**common property**) found in the **BMSMA**
5. On top of these by-laws, **MCs can make additional by-laws**

Family wins case to install grille in condo balcony for child's safety



Photo: Legale Enterprise

A by-law in the 2005 Building Maintenance (Strata Management) Regulations allows condo owners to install safety structures - such as grilles - to prevent harm to kids. The unit above is not the one mentioned.

by K.C. VIJAYAN

THE STRAITS TIMES | Jan 25, 2015



The Strata Titles Board has ruled in favour of a family who were twice refused permission to install a grille in the balcony of their 13th-level condominium unit after seeing their four-year-old daughter try to climb over it.



Uproar over dogs and lifts at Killiney condo



Resident Oei Ai Ling said it is unfair for the condo management council to ban her dogs Jerry (above) and Dogg from using the lifts, just because they are too big to be carried. PHOTO: THE NEW PAPER

PUBLISHED DEC 3, 2016, 4:13 PM SGT



SINGAPORE (THE NEW PAPER) - A resident at the Residences @ Killiney was sent 11 e-mails from the condominium's management council telling her to stop using the lifts with her dogs.

She has been ignoring the order.

Lawyers told The New Paper that generally these matters are enforced through by-laws and not rules.

The Big Read: New laws could bring relief, but condo residents' apathy a bigger problem



By KELLY NG

Published AUGUST 12, 2017

Updated NOVEMBER 08, 2017

170 SHARES



General view of One-North Residences. Photo taken on August 10, 2017. Photo: Esther Leong/ TODAY

Cap on the total number of **proxy votes** one can hold at annual general meetings, where various resolutions — including new by laws

Building Maintenance & Strata Management Act (BMSMA)

What is Share Value ?

Share Value determines:

1. **Voting right** of the subsidiary proprietor.
2. **Share** of the common property (as tenants-in-common)
3. **Contributions** to the management fund & the sinking fund

MCST makes decision by passing resolutions at general meetings:

- **Ordinary resolution** (by **50%** of the Share Value of the subsidiary proprietors present)
 - to appoint a managing agent
 - to raise management fund & sinking fund contributions.
- **Special resolution** (by at least **75%** of the Share Value of the subsidiary proprietors present)
 - to make by laws
 - sell unit to recover contributions

How does Share Value determined ?

Residential Development

Floor Area (m ²)	Share Values
50 m ² or less	5
51 to 100 m ²	6
101 to 150 m ²	7
151 to 200 m ²	8
201 to 250 m ²	9
Every 50 m ²	Add 1 Share Values

Strata Living in Singapore

Building and Construction Authority



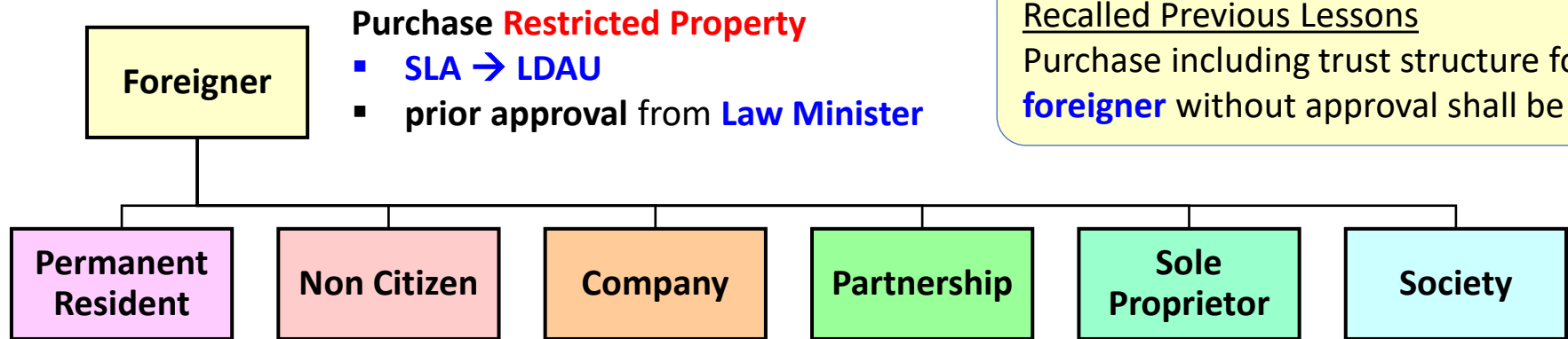
A General Guide

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Residential Property Act



Recalled Previous Lessons

Purchase including trust structure for **foreigner** without approval shall be void

**** Foreign Shareholders, Directors → Foreign company**

Restricted Property refers to

1. Vacant Residential Land
2. **Commercial and Residential Land – 20th July 2023**
3. Landed Properties (Bungalow, Semi-Detach, Terrace)
4. **Strata Landed Houses**
5. Residential Shophouse
6. Place of Worship or Association Property
7. Dormitory / Service Apartments / Boarding house
(Not in Hotel Zoning & Hotel Act)
8. Foreign person **purchases all the units** in an Apartment or Condominium building without prior approval.



Residential Property Act - Developers

1. Foreign developers **are exempted** for **Residential Development** when purchasing:
 - a) Land
 - b) Entire building
 - c) All strata units of apartment or condominiums (En-bloc Sales)
2. Must seek approval from Controller of Residential Property **and** obtain **Qualifying Certificate**

Conditions for QC:

1. Deposit banker's guarantee worth 10 per cent of the land purchase price
2. **5 years to complete a project (T.O.P / C.S.C)**
→ ***8% / 16% / 24% of purchase price of the land for the 1st / 2nd / 3rd & subsequent year extension.**
3. **Sell all units within 2 years of T.O.P / C.S.C**
→ **Extension Charge payable otherwise → no. of unsold units will be taken into consideration.**
4. Must not without approval, change the shareholding of the developer after QC is issued or sell the land in its vacant or undeveloped state

New rules on qualifying cert offer reprieve to Singapore developers

They can apply to be exempted if they have 'substantial connection to Singapore'; but there is no change to rules on ABSD regime

🕒 FRI, FEB 07, 2020 - 5:50 AM

KALPANA RASHIWALA ✉ kalpana@sph.com.sg 🐦 @KalpanaBT

NISHA RAMCHANDANI ✉ nishar@sph.com.sg 🐦 @Nisha_BT



Singapore

Exemption to QC - following criteria:

1. Incorporation in Singapore;
2. Primary listing is on the Singapore Exchange and principal place of business is Singapore;
3. The chairperson and the majority of the company's board are Singapore citizens;
4. A significantly Singaporean substantial shareholding interest in the company; and
5. Track record in Singapore

Residential Property Act (Inclusive Sentosa Cove) – Individual or Company

6. LDAU approved, foreigner has to comply with these conditions:
- Property used only for **own occupation** (family) as a dwelling house;
 - **Other family members** will not be eligible to buy another restricted property.
 - Not allowed for rental or any other purpose.
 - Property not to be sold within **5 years from:**
 - i. **date of purchase** or
 - ii. **date of TOP or CSC**
7. Controller of Residential Property can lodge caveat** to prevent unauthorised disposal.
- ** This condition does not apply to landed properties at Sentosa Cove**

Residential Property Act

8. Breached of Residential Property Act

- Fine up to **\$200,000 and/or** imprisonment up to **3 years**.
- In the case of a continuing offence, a further fine not exceeding **\$2,000** for every day or part thereof during which the offence continues after conviction.

9. Foreigner who wish to change a new restricted property (with approval)

- must sell existing restricted property within 3 months from date of legal completion / TOP or CSC, whichever earlier (for property under construction).

10. Foreigners unable to obtain approval to inherit restricted property

- have to sell within 5 years from date of death of the deceased.

11. Owners who give up Citizenship / PR status have to sell their restricted properties within 2 years.

Note:

1. Determine a property is whether a restricted property
2. Determine single or joint purchasers' nationality to comply Residential Property Act
3. Foreigners cannot rent a restricted properties exceeding 7 years (including any option to renew)

Such lease is deemed as a sale

Corruption, Drug Trafficking and Other Serious Crimes (Confiscation of Benefits) Act

Terrorism (Suppression of Financing) Act

Criminal Activities involving property transactions:

1. Corruption
2. Drug Trafficking
3. Kidnapping
4. Money Laundering
5. Terrorist Act, Financing of Terrorist

Criminal Offences:

- a fine not exceeding **\$500,000** and / or
- imprisonment for a term not exceeding **10 years**

Property Transaction → Criminal Activities

1. Report to Commercial Affairs Department → Suspicious Transaction Report Officer
2. Common Suspicious Indicators:
 - *Client appears hesitant or declines to put his name on any document that would connect him with the property.*
 - *Client uses different names on Offers to Purchase, closing documents and deposit receipts.*
 - *Client inadequately explains the last-minute substitution of the purchasing party's name.*
3. Mandatory to lodge a Suspicious Transaction Report (STR)
4. Failure to do so → criminal offence **\$250,000** and/or **3 years imprisonment**
5. Disclose → No civil or criminal proceedings

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Law firm director fined S\$10,000 for not reporting suspicious Sentosa Cove property deal



By LOUISA TANG

Published APRIL 17, 2018

Updated APRIL 17, 2018

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TODAY file photo

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SINGAPORE — The managing director of a law firm has been fined S\$10,000 for failing to report a suspicious multi-million dollar property deal on Sentosa Cove that fell apart after the “high net worth client” was detained by the Chinese authorities for involvement in one of China’s largest-ever Ponzi scheme.



Corruption, Drug Trafficking and Other Serious Crimes (Confiscation of Benefits) Act & Terrorism (Suppression of Financing) Act

THE STRAITS TIMES

LOC

Former real estate agent fined \$10,000 for failing to flag suspicious deal



Tan Yen Hsi, who used to be a senior marketing director at CBRE Realty Associates, admitted that he had failed to alert the authorities that the monies used to buy a Sentosa Cove house could have been proceeds from his client's criminal conduct. ST PHOTO: WONG KWAI CHOW

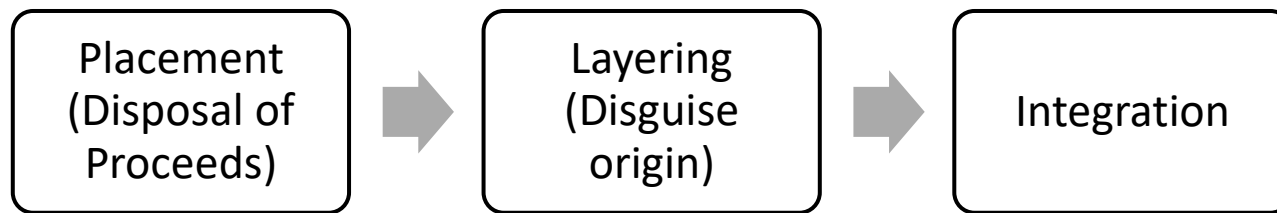
PUBLISHED JUN 5, 2018, 4:13 PM SGT



SINGAPORE - A real estate agent's client wanted to buy a Sentosa Cove house that cost almost \$24 million but he later found out that she was linked to one of China's biggest Ponzi schemes involving \$10.8 billion.



Description Of Money Laundering



1. Client to fill in the **Customer's Particulars Form** and
2. Salespersons complete the Checklist for property transaction with the client
 - Salesperson's Checklist On **Customer Due Diligence (CDD)** For Sale And Purchase Transactions
 - Salesperson's Checklist On **Customer Due Diligence (CDD)** For Rental Transactions
3. Further checks:
 - Person name found in UN Sanction Lists
 - "**Politically Exposed Person**" (**PEP**) refers to domestic PEP, foreign PEP or an international organisation PEP



Estate Agent Act – 1st July 2025

S 44A Estate Agent Act

A licensed estate agent or registered salesperson must take steps during any property transaction (buying or selling) to prevent the deal from being used for money laundering, terrorism financing, or similar illegal activities

S 44B Estate Agent Act - Customer due diligence measures

Licensed estate agents and registered salespersons must carry out customer due diligence in these situations:

1. When doing estate agency work for a client.
2. If they suspect money laundering, terrorism financing, or similar crimes.
3. If they doubt the accuracy or completeness of earlier client information.
4. In any other situations as required by law.

S 44BA Estate Agent Act - Counterparty due diligence measures

This section applies when the other party in a property deal is not represented by an estate agent or salesperson. In such cases, the licensed estate agent or registered salesperson must carry out counterparty due diligence if:

1. They suspect money laundering, terrorism financing, or similar crimes.
2. They doubt the accuracy or completeness of earlier information.
3. The law requires them to do so in specific situations.

Estate Agent Act – 1st July 2025

S 44C – Estate Agent Act – Keeping of Records

Licensed estate agents must:

1. Keep records of all estate agency work where customer or counterparty due diligence was done, including key details.
2. Keep information and documents related to clients and unrepresented counterparties collected during due diligence.
3. Store all supporting documents used to verify that information.
4. Maintain these records in the required format and for the prescribed duration.
5. Provide these documents to the Council when requested.

S 44D Estate Agent Act - Disclosure of suspicious transactions

A licensed estate agent or a registered salesperson must, if circumstances exist that require the licensed estate agent or registered salesperson to do so, make a disclosure under section 45(1) of the Corruption, Drug Trafficking and Other Serious Crimes (Confiscation of Benefits) Act 1992.

Real Case Illustration

- 1 RES received an email from Client (who claimed to be American citizen who chanced upon RES's real estate advertisement online) expressing his interest to rent a private property. Rental contract was drawn up, to take effect upon Client's transfer of the rental deposit. However, Client failed to transfer the money within the stipulated timeline.
- 2 A few weeks later, Client informed that his business associate / relative had 'accidentally' transferred money into RES's bank account. RES was then instructed to withdraw & hand over the money to a person claiming to be Client's friend in Singapore. There was no good explanation of how the associate / relative had obtained RES's bank account number, why the sum transferred bore no relation to the agreed rent & why RES was not asked to request his bank to simply reverse the transfer. Subsequently, RES turned down the client's request when approached for assistance on another money transfer.
- 3 Investigation revealed that the monies transferred to RES's bank account were proceeds of crime originating from fraud perpetrated in a foreign country. By transferring proceeds of crime, RES may have wittingly or unwittingly facilitated money laundering in Singapore.
- 4 When instructed to pass the funds to an unrelated individual, RES should have lodged a STR as the remittance & subsequent instruction are deemed suspicious. He should have also considered asking his bank to reverse the transfer of funds (i.e. to return the funds to the originating bank account).
- 5 Police did not take action against the RES as investigations revealed that there was no intent on his part to commit any offence and that he did not proceed to assist the client subsequently.

Conveyancing & Law Property Act (Covered in Paper 1)

Conveyancing & Law of Property (Conveyancing) Rules 2011

Missing lawyer Zulkilfi Amin may have made off with \$6m in latest case of...

HIT & RUN LAWYERS

New rules on handling money

◆ Since May, lawyers not allowed to draw money from clients' accounts via ATMs or online banking services.

◆ They also cannot draw such monies in cash cheques or bearer cheques without leave from a High Court judge.

In July, more rules kicked in.

◆ Cheque amounts exceeding \$30,000 now require two signatories.

◆ In addition, a lawyer who has practised for under three years cannot sign a cheque to withdraw monies.

1. This law was create to improve the practice of conveyancing
2. Regulate lawyers receiving, holding and distribution of conveyancing
3. Contravene the law:
 - \$50,000 and or
 - 3 years imprisonment

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Lawyer in missing millions case hit with 19 more charges, taking total amount involved to more than S\$75 million



Managing director of JLC Advisors Jeffrey Ong. (Photo: JLC Advisors' website)

20 Oct 2020 01:04PM
(Updated: 20 Oct 2020 01:10PM)



Lawyer in missing millions

SINGAPORE: Jeffrey Ong Su Aun, the former managing partner of JLC Advisors LLP who went missing after allegedly embezzling millions from an engineering firm, has been charged with 19 more counts of criminal breach of trust and

Related Topics



Conveyancing & Law Property Act

Conveyancing & Law of Property (Conveyancing) Rules 2011

1. Conveyancing money refers to money for the purchase, sale and lease of land. It includes:

- Option deposit
- Balance purchase price
- CPF money
- Stamp Duties
- Payment to JTC, IRAS, SLA etc.
- Payment to Developer, Seller, Buyer, Landlord, Tenant, Licensor, Licensee etc.
- Payment to Bank
- Security Deposit
- Goods and services tax (if any) payable

Covered in Paper 1 lessons

2. Deposit conveyancing money in

- a) Special conveyancing accounts held with appointed banks
- b) Singapore Academy of Law

Withdrawal of conveyancing money requires **two lawyers** signatures

3. These Rules allow solicitors to use jointly managed escrow accounts to hold conveyancing money for complex commercial transactions.

Planning Act

1. Laws to regulate use of land → **Master Plan** → Optimise the use of land
2. Approved **conservation buildings** in Singapore → Conservation Guidelines
3. Application for **subdivision and development** of land

Land Betterment Charges Act 2021

1. Collection of Tax for enhancement of land value or uses under Singapore Land Authority
2. Old Laws – Development Charges (DC) paid to URA, Differential Premium (DP) paid to SLA
3. **Planning permission** is granted to carry out development projects that increase the value of the land. (DC)
 - rezoning to a higher value use
 - increasing the plot ratio
4. Tax calculated is based on **Table of Rates** (Similar to old DC Table)
5. **Residual unexpired tenure of 99 years or less**, tax will be calculated based on **Leasehold Table**
 - Top Up Lease to 99 years (DP)
6. Tax is calculated based on 118 Geographical Sectors

Planning Act



Other restrictions – Residential Property - [Cover in Paper 1 topics](#)

- illegal for people to rent out, sublet or share their private homes lesser than **THREE (03)** months.
- Penalty - **\$200,000** and/or **not exceeding 12 months imprisonment** or to both

THE STRAITS TIMES

today

Two Airbnb hosts charged over illegal home sharing in first case under new laws

Two Airbnb hosts fined S\$60,000 each for unauthorised short-term letting

By WONG PEI TING; VICTOR LOH

Published APRIL 03, 2018
Updated APRIL 03, 2018
42 SHARES

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SINGAPORE — Two Airbnb hosts who became the first to be hauled to court since laws were passed to address short-term rentals were fined a total of S\$60,000 each on Tuesday (April 3).

Terence Tan En Wei, 35, and Yao Songliang, 34, faced four charges for listing four apartments at the D'Leedon condominium on Farrer Road, which they let out regularly on short-term leases over five weeks — ranging from a few days to weeks — from May 15 last year.



Terence Tan En Wei (left) and Yao Songliang face four charges each for renting out their private property to others for under six months. ST PHOTO: ONG WEE JIN

Ex-property agent fined record \$1.16m for illegally subletting private homes on Airbnb



Isabelle Liew

May 30, 2022 05:43 pm



A 57-year-old man was fined a record \$1,158,000 on Monday (May 30) for offences related to unauthorised short-term accommodation.

Simon Chan Chai Wan had illegally provided short-term rents in 14 private residential properties to local and foreign guests through platforms like Airbnb and HomeAway.

His accomplice, Zhao Jing, 43, was fined \$84,000 for aiding him in carrying out the offences.

The properties included units in International Plaza, Robinson Suites, Claremont, Centrepont Apartments, The Abode at Devonshire and Caribbean at Keppel Bay.



Simon Chan Chai Wan had illegally rented residential properties such as Caribbean at Keppel Bay (pictured). PHOTO: ST FILE

Immigration Act

1. This law relating to foreigners immigration into and departure from Singapore through land, air and sea checkpoints.
2. Under this Act, an owner is liable to be charged for harbouring over-stayers or illegal immigrants in his house if investigations reveal that he has not exercised due diligence as required by the law.
3. Real estate agents are also held responsible for not checking the status of tenants upon successful introduction.

THE STRAITS TIMES

Jail for man who harboured two overstayers engaged in vice activities

Isabelle Liew

PUBLISHED AUG 13, 2021, 5:00 AM SGT



A Singaporean man who rented a housing unit and then sublet it to two Chinese nationals who engaged in vice activities there has been sentenced to seven months' jail over an immigration offence.

Xu Yixuan, 26, was given the sentence for harbouring one of the women, with the second charge of harbouring the other woman taken into consideration during sentencing.

Both women were overstayers.

4. Landlord / Agent harbouring illegal immigrant or an over-stayer:
 - imprisoned for 6 months to 2 years and or
 - fined up to \$6000
5. HDB can compulsorily acquire the flat under the Housing & Development Act if they find illegal immigrants in HDB flat.

WHO SHOULD CHECK the Immigration Status of Foreign Tenants



With effect from 15 January 2005, housing agents are required to conduct due diligence checks before recommending foreign tenants to homeowners. Nevertheless, homeowners who wish to rent their premises to foreigners are still required to exercise due diligence in checking the status of their prospective foreign tenants to ensure that they are in Singapore legally.

CONSEQUENCES of Harboursing Overstayers and/or Illegal Immigrants

Under the Immigration Act, the homeowner is liable to be charged for harbouring overstayers and/or illegal immigrants in his house if investigations reveal that he has not exercised due diligence as required by the law.



If the homeowner is found guilty of recklessly (i.e. failing to carry out all of the three due diligence checks or carrying out only one of these checks) or knowingly harbouring overstayers and / or illegal immigrants, he may be sentenced to imprisonment of not less than six months and not more than two years and a fine not exceeding S\$6,000.

OR

If the homeowner is found guilty of negligently (i.e. carrying out only two of the three due diligence checks) harbouring overstayers and/or illegal immigrants, he may be liable to a fine not exceeding S\$6,000 or to imprisonment for a term not exceeding 12 months or to both.

Immigration Act

Law requires agent and landlord to perform 3 due diligence checks.

Work passes & dependent passes --
www.mom.gov.sg

Long term passes & student passes --
www.ica.gov.sg

HOW TO CHECK

Before renting your room / house / flat to a foreigner, you are required to:

1

Check his **ORIGINAL** immigration pass and / or work pass;

You need my work pass?
Erm, let's pretend this gift of \$10 is my work pass...



2

Cross-check particulars on these passes against particulars on his **ORIGINAL** passport;



Er...that is not stolen.
It's mine. My hair was long when that photo was taken...

3

Verify the validity of his pass either by checking with the Immigration & Checkpoints Authority (immigration pass) OR the Ministry of Manpower / Employer (work pass).



Issued from 20 Mar 2018



Front



Back

Issued from 20 Mar 2018



Front



Back

New Methods to Check Passes



Pass Type	Work Permit
Pass Expires On	31 Dec 2018
Employer	ABC CONSTRUCTION PTE. LTD.
Occupation	Construction Worker
Sector	Construction
Date of Application	30 Nov 2016
Issued On	31 Dec 2016
Multiple Journey Visa	Issued
Card Serial Number	K0000000

Accessed at 11 Aug 2017, 06:27PM



Check Work Pass Status

Enter the **card serial number** printed on your card.



Work Pass Card



Card Serial
Number

Long Term Pass Card



Last Updated: 12 Jul 2018

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SINGAPORE

31 people arrested for vice activities and illegal gambling

Arrests made when police conducted home raids in Jalan Bukit Merah and Beach Road, among other areas



Samuel Devaraj

Oct 21, 2020 06:00 am



1041 Engagements

When police raided a flat in Chay Yan Street in Tiong Bahru on Saturday night, they found a man having sex with a woman believed to be an illegal sex worker.

The officers used a battering ram to enter the second-storey unit as illegal activities were believed to be happening there.

The woman was among three who were arrested in the four-room flat. There were two



Officers using a battering ram to enter a unit in Chay Yan Street in Tiong Bahru on Saturday night. A woman was among three people

Land Acquisition Act

1. An Act to provide for the acquisition of land for:
 - a) for any public purpose.
 - b) for any work in the opinion of the Minister, is of public benefit or of public utility or in the public interest; Example expressways, MRT lines, ports, airports or
 - c) for any residential, commercial or industrial purposes
2. Compensation to be made on the **market value** of the acquired land on the date of acquisition
3. Owner's right to appeal to **Appeal Boards** (sitting or retired judges of the Supreme Court) within **28 days** against the Collector (SLA).

→ Collector and the Owner engage their own lawyer and valuer for the Appeals Board hearing.
4. Both the Collector and the appellant may appeal to the Court of Appeal if they are dis-satisfied with the decision of the Appeals Board. The decision of the Court of Appeal is final.



By Monica Kotwani

@MKotwaniCNA

By Kimberly Spykerman

30 Apr 2016 07:00AM

(Updated: 17 Mar 2017 10:10AM)



Bookmark



SLA moves to take possession of building after home owners refuse to budge

The walk-up building along Tanjong Katong Road needs to be demolished to make way for Amber Station on the Thomson-East Coast Line, but owners of five units want more compensation.



SINGAPORE: The Singapore Land Authority (SLA) is initiating proceedings to take possession of a walk-up building which needs to be demolished so that one of the stations on the Thomson-East Coast Line can be built.



Tanjong Katong residents resist SLA deadline to move out to make way for Amber MRT station



Mr Cheng is still living in the block. He said he was not satisfied with the compensation and wanted more time to look for another home. ST PHOTO: JAMIE KOH

SLA serves notice of possession to 3 landed properties after owners fail to move out after deadline



 PUBLISHED APR 25, 2017, 11:36 AM SGT |  UPDATED APR 25, 2017, 6:31 PM

Note:
Collector has authority to take possession of property

Oaths & Declarations Act

1. Law relating to oaths and statutory declarations
2. Examples
 - Seller and Buyer must declare true resale price of the flat to HDB
 - Declaring an unemployed status when applying for a HDB loan.
 - Execute a Salesperson Statutory Declaration on information related to HDB transaction
 - Statutory Declaration to prove execution of Will
3. Making a False Statutory Declaration → **Criminal Offence** under Singapore law.
 - 3.1 A person makes a false declaration **in judicial proceeding**
 - **7 years imprisonment and a fine**
 - 3.2 In any other cases, person makes false declaration
 - **3 years imprisonment and a fine**

Personal Data Protection Act (PDPA)

A law about governing the **collection**, **use** and **disclosure** of personal data by **organisations** and to establish the **Do Not Call Register**

What is Personal data ?

- Data **whether** true or not can **identify an individual**:
 1. From that data **or**
 2. Information which an organization is likely to have access
 3. Covers personal data stored in **electronic** and **non-electronic** forms
- Anyone obtain or change data without the approval of individual → Criminal Offence
 - **\$5000 and or 12 months imprisonment**

Personal Data may include:

- ✓ Full Name
- ✓ **NRIC or Fin Number ****
- ✓ Passport Number
- ✓ Personal email address



- ✓ Mobile No
- ✓ Thumbprint
- ✓ DNA Profile
- ✓ Name & Residential address
- ✓ Photograph or Video image of a person



Stricter NRIC data collection rules kick in from Sept 1; non-compliance could result in hefty penalties



From Sept 1, it will be illegal for organisations to physically hold on to an individual's NRIC and collect its full number. PHOTO: ST FILE

Organisations are only allowed to collect, use or disclose NRIC numbers or copies of the NRIC if:

1. The collection, use or disclosure is **required by the law**; or
2. It is necessary to **verify an individual's identity** to a high degree of accuracy

Personal Data Protection Act (PDPA)

Consent, Purpose & Reasonableness

- Organisations may collect, use or disclose personal data only for **specific purposes only** with the **individual's knowledge and consent**;

Organization must:

1. Appoint a Data Protection Officer
2. Map Out Organization's Personal Data Inventory
3. Implement Data Protection Processes

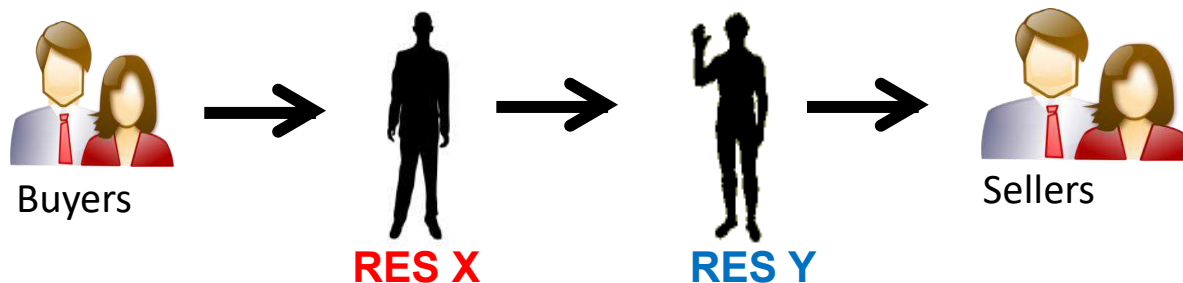
Personal Data Protection Act (PDPA) – Key Concepts

The data protection provisions generally do not apply to:

1. Any **individual** acting in a **personal or domestic basis**.
2. Any employee acting in the course of his or her employment with an organisation.
3. **Any public agency or an organisation**
4. **Business contact information**.
This refers to an individual's name, position name or title, business telephone number, business address, business electronic mail address or business fax number and any other similar information about the individual, not provided by the individual solely for his or her personal purposes.
5. **Personal data** in a record in existence for at least **100 years**.
6. **Personal data** about deceased individual dead for **> 10 years**.

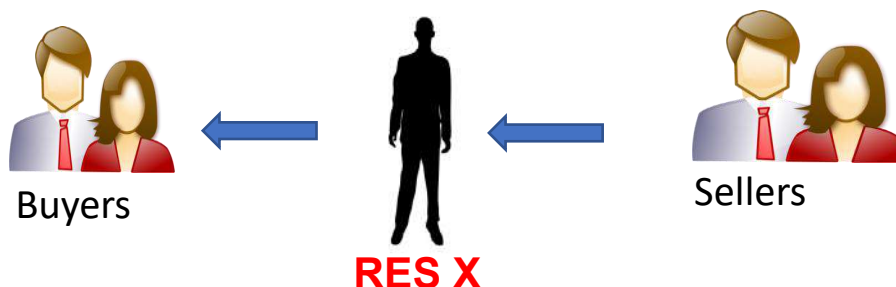
www.cea.gov.sg/legislation-guidelines/practice-guidelines-circulars/personal-data-protection

Personal Data Protection Act (PDPA)



Example 1

RES X would require consent to disclose his client's (buyer) personal data including name, NRIC No. & contact details to **RES Y** (acts for seller) when conveying the buyer's offer to secure the OTP.



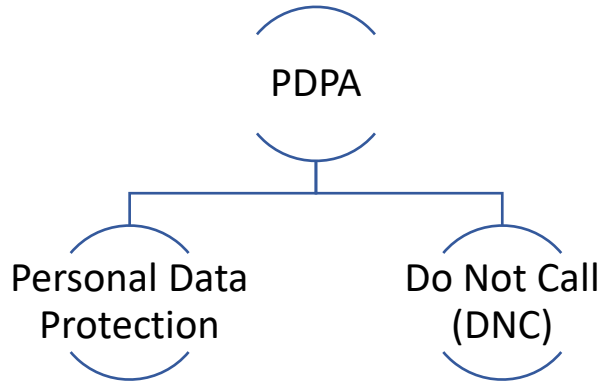
Example 2

RES would be disclosing personal data if he indicates to prospective buyer that **the sellers have 2 children attending school in the vicinity & that they are selling the property because they are emigrating.**

RES should **obtain owners' consent** to mention some of their personal details to prospective buyers when he discusses the sale with the owners

Do Not Call Registry

1. DNC rules generally prohibits **organisations** from sending **marketing messages** to DNC numbers list
 - includes **mobile, fixed-line, residential and business** numbers



Registers

- ☐ No Voice Call
- ☒ No Text Message
- ☐ No Fax Message



2. **Specified message** (“marketing messages” - B2C) refers to:
 - Offering to supply, advertise or promote goods or services;
 - Advertising/promoting suppliers or prospective suppliers of goods or services; or
 - Supplying/advertising/promoting land, interests in land or business/investment opportunities.
3. Organisations have **21 calendar days** to ensure marketing messages are not sent to individual’s telephone number when he/she opt out
4. Violation → fine of up to **S\$10,000** per message

Do Not Call Registry

today

Singapore

World

Big Read

Gen Y Speaks

Adulting 101

Commentary

Voices

Videos

Brand Spotlight

8 DAYS



By NEO CHAI CHIN

Published OCTOBER 20, 2014

Updated OCTOBER 20, 2014

14 SHARES



Kuan Chow Sheng, a property agent, has been fined for breaching the Do Not Call (DNC) requirements under the Personal Data Protection Act. TODAY file photo

Follow us on [Instagram](#) and join our [Telegram](#) channel for the latest updates.

SINGAPORE — A property agent has been fined S\$27,000 for breaching the Personal Data Protection Act.

Kuan Chow Sheng, 32, today (Oct 20) pleaded guilty to nine charges of failing to check the Do Not Call Register, and had 18



Do Not Call Registry

Exceptions to DNC Rules:

1. Service calls or reminder messages regarding services bought by the individual;
2. Market survey or research;
3. Relating to charitable or religious causes;
4. Messages targeting businesses (i.e. B2B) and not individuals
5. Text or fax messages (but not voice calls) about products, services and memberships that are relevant to individuals with whom organisation has an ongoing relationship
 - Note: One-off transactions does not constitute an ongoing relationship
6. Obtained a clear and unambiguous consent evidenced in written or other form from the individual

PDPC's Advisory Guidelines

A message sent for the purpose of obtaining clear and unambiguous consent for the sending of specified messages, would be considered a specified message.

Consumer Protection (Fair Trading) Act



Photos: TNP, Lianhe Zaobao



Pre-paid Package Deals What you should know

Many businesses offer prepaid packages for a variety of products and services such as home renovation, bridal services, travel bookings, beauty treatments, gym memberships etc. It is a common business model worldwide. On its own, it is not an unfair practice. However, consumers risk losing their prepayments should the company suddenly close down.

How can you protect yourself against loss of prepayment?

Business failure can happen unexpectedly. Even big companies with good reputations are not immune from business failure. Consumers should consider the following before making payment for package deals:



Check if the company offers a pay as you use payment option instead. Although this may be more expensive, you will enjoy greater peace of mind.



Find out if the company has any insurance or escrow arrangements that protect your prepayment.



Check if the business is accredited by CaseTrust at www.casetrust.org.sg and what modes of prepayment protection, if any, that the CaseTrust accredited business offers.



Avoid purchasing prepaid packages that involve large sums or lengthy contract periods.

Will I be able to get a refund if the business suddenly closes down?



Consumers can feedback to CASE about the closure of the business. CASE will advise consumers on their available options.



Consumers can also file a claim with the Small Claims Tribunals provided that the business has not entered into insolvency proceedings (i.e. liquidation / winding-up).



If the company is being wound up, customers will only be paid after banks, landlords, suppliers and employees are paid.

Can we have stricter laws to protect consumers' prepayments?



Given the wide range of businesses, broad based measures may affect businesses cash flow and raise the cost of doing business which would be passed on to consumers.



Most jurisdictions (US, EU, Japan, Korea, Australia and Hong Kong) similarly do not impose broad-based measures.



The Consumer Protection (Fair Trading) Act provides for measures to deal with errant retailers who engage in unfair business practices. Cases which involve elements of cheating will be referred to the Police.



Consumer Protection (Fair Trading) Act

The CPFTA applies to most consumer transactions aggrieved by **unfair practices** :



- a) but **does not apply** to **sales of land and houses** and
- b) to have recourse to civil remedies **before the courts**
- c) Maximum claim is **\$30,000**



S4 of CPFTA defines unfair practices as:

Suppliers who

- a) Do or **say** anything, or omit to do or say anything, if as a result a consumer might reasonably be **deceived** or **misled**; and/or
- b) Make a **false claim**; and/or
- c) **Take advantage** of a consumer if they know or ought reasonably to know that the consumer:
 - i. Is not in a position to protect his own interests; and/or
 - ii. Is not reasonably able to understand the character, nature, language or effect of the transaction or any matter related to the transaction; and/or
- d) Commit any of the 24 unfair practices specified in the Second Schedule to the CPFTA

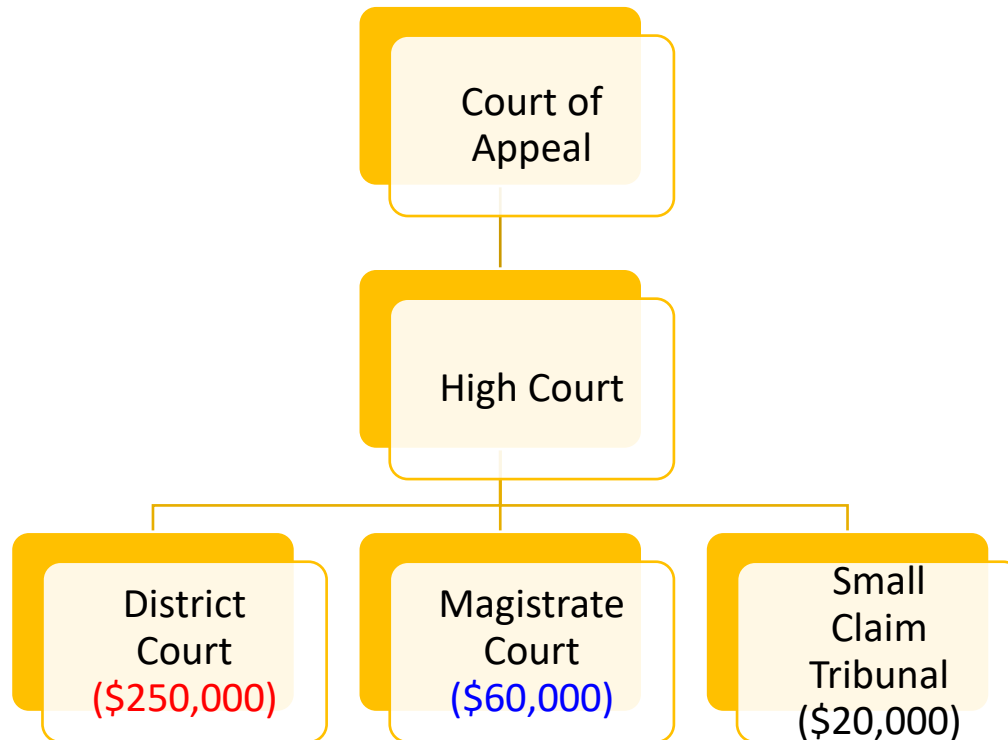
Consumer's Right to Sue for Unfair Practice → Jurisdiction and Powers of Courts:

1. Consumer can commence trial for unfair practises in :

→ **State Courts** or **Small Claim Tribunal**

2. **Jurisdiction and powers of courts**, If Court finds a supplier engaged in an unfair practice, may order:

- a. order **restitution** of any money, property or other consideration given or furnished by the consumer
- b. award the consumer **damages** in the amount of any loss suffered.
- c. make an order of **specific performance** against the supplier;
- d. make an order directing the supplier to **repair** goods or provide parts for goods.
- e. make an order **varying the contract** between the supplier & the consumer.



Small Claims Tribunals Act

1. Small Claim Tribunals is constituted as part of the State Courts of Singapore
 - to provide a quick and inexpensive forum for small claims between consumers and suppliers.
 - has the jurisdiction to hear dispute in **any claim** relating to:
 - i. **Dispute arising from any contract** for the sale of goods or the provision of services.

Example 1

Estate Agency Services

- ii. Torts in respect of damage caused to any property

Example 2

Damage to your property due to trespassing

- iii. Dispute arising from any contract for the **lease of residential premises** that does not exceed **2 years**.

Example 3

Dispute between landlord and tenants over the security deposits and defective items.

Small Claims Tribunals Act

2. Jurisdiction of Small Claim Tribunal

- to hear and determine any claim value not exceeding **\$20,000**.
- claims exceeded prescribe limit but less than **\$30,000**

Requirement

1. Claimant and the Respondent consent in writing
 2. Jurisdiction can be raised to **\$30,000** - **Memorandum of Consent**.
- within **2 year** from the date on which the disputed started.

What if my claim does not fall within the jurisdiction of the Small Claim Tribunal ?

It does not mean that you have no remedy. You can still sue in the other civil courts